4790

Executive Order

AUTHORIZING THE ALIEN PROPERTY CUSTODIAN TO SELL CERTAIN PROPERTY AT PRIVATE SALE

By virtue of the authority vested in me by an Act of Congress entitled "An act to define, regulate, and punish trading with the enemy and for other purposes", approved October 6, 1917, known as the "Trading with the Enemy Act", and the amendment to such Act embodied in "An Act making appropriations to supply urgent deficiencies in the appropriations for the fiscal year ending June 30, 1918, and prior fiscal years on account of war expenses and for other purposes", approved March 28, 1918, and the amendment to such Act embodied in "An Act making appropriations to supply deficiencies in appropriations for the fiscal year ending June 30, 1919, and prior fiscal years on account of war expenses, and for other purposes", approved November 4, 1918, to make certain orders such as that herein contained, I hereby, in the public interest, make the following determination, order, rule and regulation:

The Alien Property Custodian is hereby authorized to sell at private sale, at such time and place as to him or to his authorized agent may seem advisable, without public or other advertisement, for and in consideration of the sum of FIVE THOUSAND FOUR HUNDRED AND EIGHTY-FIVE DOLLARS and SEVENTY-TWO CENTS ($5,485.72), the six-sevenths interest in certain real estate now being held and administered by him as such Alien Property Custodian, and heretofore, upon requirement, conveyed, transferred, assigned and delivered to him as the property of Louis F. Kloz, Frieda Kloz, Friedrick L. Kloz, Albert J. Kloz, Bertha Volz, Ernest P. Volz, Frederick W. Rabel, Louise D. Iselabold, Eugene Rabel, Carl Ludwig, Dorothea L. Richter, Marie E. Hiller, Rosalie S. Bensich, August Weigle, Marie Weigle, Catherine Weigle and Emilie E. Tucht, residing in Germany, whom, after investigation, he did determine to be enemies within the purview of said Act as amended, which said real estate is situate in the City of Long Island, County of Queens, State of New York, and described as follows: to-wit:

> All that certain lot of land situate in the late Village of Astoria, now Long Island City, in Queens County, and State of New York, known and distinguished on a certain map of property situate in the Fourth Ward of Long Island City, Queens County, New York, belonging to Francis Brill, Esquire, surveyed and drawn March 1880 by P. G. Van Alst, City Surveyor and intended to be filed in the Office of the Clerk of the County of Queens by the number (5) in Block number One hundred and twenty (120), and bounded and containing as follows, to-wit: BEGINNING at a point on the Southeasterly side of Lathrop Street (formerly Third Avenue), as laid down on said map, distant Two hundred (200) feet Northeasterly from the corner formed by the intersection of the Southeasterly side of said Lathrop Street and the Northwesterly side of Jamaica Avenue as laid down on said map, and running thence Northeasterly along said Lathrop Street Twenty-five (25) feet; thence Southeasterly and parallel with said Jamaica Avenue Ninety-seven (97) feet seven and one-quarter (7¼) inches to the centre line of the block between said Lathrop Street and Rapelye Avenue as laid down on said map; thence southwesterly along the centre line of the said block; and parallel with said Lathrop Street Twenty-five (25) feet, and thence Northwesterly and parallel with said Jamaica Avenue Ninety-seven (97) feet, seven and one-quarter (7¼) inches to the place of beginning.

My reasons for the foregoing determination, order, rule, and regulation are:

(a) An advantageous offer for the purchase of said real estate has been received by the Alien Property Custodian.

(b) Because there are thirty-four persons each owning a small fractional interest in the property and it is necessary to convert the same into cash in order to make distribution.

(c) Because the Americans holding a one-seventh (1/7) interest request that the sale be made in order that they can obtain their equity in cash from the property.

CALVIN COOLIDGE

THE WHITE HOUSE,
December 30, 1927.

[No. 4790]

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